

24STCV16249 24STCV16249

County: los-angeles

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Case Number: 24STCV16249 Hearing Date: August 10, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 309

TENTATIVE RULING

NAYRIKA D. MASJEDI

vs.

ALFA CLOTHING & FINISHING, INC., et

al.

Case

No.: 24STCV16249

Hearing Date: August 10, 2026

Defendant's

demurrer is SUSTAINED, WITHOUT LEAVE TO AMEND.

On 6/28/2024,

Plaintiff in pro per Nayrika D. Masjedi filed suit against Alfa Clothing &

Finishing, Inc., Andria's Packing & Finishing Inc., Rafi Clothing &

Finishing, and Rafik Torosyan. On 9/5/2025, Plaintiff filed a first amended

complaint (FAC). On 3/3/2026, Plaintiff filed a second amended complaint (SAC), alleging: (1) breach of contract; (2) negligence; (3) breach of bailment/duty of care.

On 4/6/2026, Defendant Alfa Clothing & Finishing, Inc. and Rafik Torosyan (collectively, Defendants) demurred to Plaintiff's SAC.

Discussion

Defendant argues that Plaintiff's SAC fails to remedy the deficiencies previously identified in the original demurrer, namely the issue of standing. Defendant further argues that the claims are insufficiently pled and uncertain.

In the original Complaint, Plaintiff brought this suit on behalf of "plaintiff Nayrika D. Masjedi dba the Clean Out Group" (See Complaint ¶ 3.) However, Defendant submitted evidence that no such legal entity exists. Rather, there is a Clean Out Group Inc., which has been in suspended status since 4/2/2024. As such, at the time this action was filed, Clean Out Group Inc had no standing to participate in litigation. (See Cal. Corp. Code §§ 23301, 23301.5 [a suspended corporation cannot prosecute an action or defend itself in court].) Moreover, Plaintiff, as a non-attorney, cannot represent a corporate entity.

Then, in the FAC, Plaintiff removed allegations that the claims are brought on behalf of the Clean Out Group, and asserts them in her personal capacity. The Court sustained the demurrer finding that to avoid running afoul of the sham pleadings doctrine, Plaintiff needed to allege facts which could explain this change.

The Court also noted that Plaintiff was limited to the original causes of action asserted in her original Complaint, i.e., (1) breach of contract; (2) intentional interference with prospective business advantage; (3) breach of fiduciary duty; (4) conversion; (5) trespass to chattel; (5) breach of implied covenant of good faith and fair dealing; and (6) negligence.

Despite this,

Plaintiff's SAC still asserts claims for breach of bailment. The Court disregards this cause of action, and looks only to the breach of contract and negligence causes of action.

After

review, the Court finds that Plaintiff's SAC runs afoul of the sham pleadings doctrine. As Defendant explains:

In the SAC,

the defects found in the original complaint and FAC still exist and have not been cured. Additionally, Ms. Masjedi fails to provide a proper explanation as to why she has removed The Clean Out Group, Inc. as a Plaintiff from the SAC and why she has removed all references to the company. The only "explanation" she now provides in response to the Court's order for an explanation with "facts" is that she "inadvertently included a reference to "The Clean Out Group." (emphasis added) (See SAC, page 3, lines 25-26).

Ms. Masjedi's

"explanation" falls below the standard required to overcome the burden of a sham pleading. First, the original complaint did not just have "a" reference to The Clean Out Group, Inc. but several references including calling the entity Ms. Masjedi's "company." Second, her explanation regarding "inadvertence" is a sham in and of itself. How does one include an entity-separate and apart from oneself – and allege facts pertaining to this entity – in an "inadvertent" manner? This is not a proper and viable explanation as to why Ms. Masjedi removed all reference to the "The Clean Out Group" in the SAC when evidence previously provided in the demurrers to the original and First Amended Complaint illustrate that The Clean Out Group is the real party in interest, having invoices and checks issued in its name.

(SAC

Demurrer , 7: 13-28.)

In

sum, the Court finds Plaintiff's own original allegations, as well as judicially noticed invoices and checks indicate that the Clean Out Group, of which Plaintiff was the principal and agent, is the real party in interest. Accordingly, Plaintiff lacks standing to pursue this action in her individual

capacity.

Given

that this was Plaintiff's third opportunity to allege facts which could show standing, the Court finds additional leave to amend would be futile.

Based

on the foregoing, Defendant's demurrer is sustained, without leave to amend.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.